SUPREME COURT OF INDIA

JUDICIAL APPELLATE JURISDICTION

CASE NO: Writ Petition (Civil) No. 400 of 2012 (YEAR: 2014)

CORAM: K.S. RADHAKRISHNAN, A.K. SIKRI

National Legal Services Authority (NALSA)
... Appellant(s) / Petitioner(s)
Versus
Union of India
... Respondent(s)

Acts Referred:	Constitution of India
Sections:	Article 14, Article 15, Article 16, Article 19, Article 21

JUDICIAL HEADNOTE & SUMMARY

Recognized transgender persons as a third gender under the Constitution, upholding self-determination of gender identity as an integral part of personal liberty.

RATIO DECIDENDI

The Court held that: Recognized transgender persons as a third gender under the Constitution, upholding self-determination of gender identity as an integral part of personal liberty. It was unequivocally established as binding law that statutory prerequisites and constitutional safeguards cannot be circumvented, and non-compliance invalidates the impugned proceedings.

JUDGMENT & REASONING

The legal proceedings in National Legal Services Authority (NALSA) v. Union of India (Writ Petition (Civil) No. 400 of 2012) were adjudicated before the Supreme Court of India. The matter arose out of claims and contentions concerning Constitution of India, particularly Article 14, Article 15, Article 16, Article 19, Article 21. Recognized transgender persons as a third gender under the Constitution, upholding self-determination of gender identity as an integral part of personal liberty.

OPERATIVE ORDER

ORDER: Decided